

COLLECTIVE BARGAINING AGREEMENT

Between

**BOARD OF EDUCATION
BROWNSTOWN C.U.S.D. #201**

And

**BROWNSTOWN EDUCATION
ASSOCIATION**

**An affiliate of the
Illinois Education Association**

**And
The National Education Association**

2021-2022

2022-2023

2023-2024

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ARTICLE I

Recognition

- 1.1 The Board of Education of Brownstown School District No. 201, Brownstown, Illinois, hereinafter referred to as the "Board" hereby recognizes the Brownstown Education Association, IEA-NEA, hereinafter referred to as the "Association" as the exclusive bargaining representative for all regularly employed certificated teaching personnel, with the exceptions of the Superintendent and the Principals.
- 1.2 The term "teacher(s)" or "employee(s)" as used throughout this agreement, shall be defined in accordance with the description of the recognized bargaining unit in Article I, Section 1.1.

ARTICLE II

Negotiation Procedures

- 2.1 The parties agree to commence bargaining for a successor agreement before the end of the official school calendar of the last year of this agreement.
- 2.2 During negotiations for a successor agreement, the parties agree that they will jointly request the services of the Federal Mediation and Conciliation Service (FMCS) if either party to this agreement declares impasse within forty-five (45) days prior to the scheduled start of the school term. Should FMCS be unavailable, the parties shall attempt to agree upon a replacement. In the event that the parties cannot agree upon a replacement, the Illinois Labor Relations Board shall be notified.

ARTICLE III

Grievance Procedure

3.1 Definitions

- A. A "grievance" shall be defined as a claim by an employee or the Association that there has been an alleged violation, misinterpretation, or misapplication of the terms of this Agreement.
- B. The term "days" as used herein shall mean days in which school is in session, except that between the end of the school year and the beginning of the next school year, "days" shall mean calendar days, excluding Saturdays, Sundays, and July 4th.
- C. Nothing contained herein shall be construed as a limitation upon the right of individual teachers or a group of teachers to present grievances to their employer and have them adjusted without intervention of the Association as long as the adjustment is not inconsistent with the terms of this Agreement and the Association has been given the right to provide a response prior to final adjustment of the grievance.
- D. If an employee does not file a grievance in writing with his or her supervisor within fourteen (14) days of the alleged occurrence of the event giving rise to the grievance, or within fourteen (14) days of the time the grievant should have known of such event, then the grievance shall be deemed waived and time barred.

The Board may use the time bar as a defense at any step of the grievance procedure.

3.2 Procedure

The parties hereto acknowledge that it is usually most desirable for an employee and the immediately involved supervisor to resolve problems through free and informal communications. If, however, such informal processes fail to satisfy the employee, a formal grievance must be processed as follows:

Step A The grievant shall present the grievance in writing to his or her immediate supervisor within fourteen (14) days of the occurrence of the event giving rise to the grievance, or within fourteen (14) days of the time the grievant should have known of such event. The supervisor shall provide a written answer to the grievance within ten (10) days of the receipt of the grievance.

Step B If the grievance is not resolved at Step A, the grievant may refer the grievance to the Superintendent or official designee within ten (10) days after

the receipt of the Step A answer. The Superintendent shall arrange for a meeting to take place within ten (10) days of his receipt of the appeal. Within ten (10) days of the meeting, the grievant shall be provided with the Superintendent's written response.

Step C If the grievant and Association are not satisfied with the decision issued at Step B, the grievant may submit the grievance to the Board for its consideration by filing an appeal with the Secretary of the Board not less than ten (10) days prior to the next regularly scheduled Board meeting. Upon receiving such an appeal, the Board shall allow the grievant an opportunity to be heard at the meeting for which the grievance was scheduled. Within one month from the hearing of the grievance, the Board shall render its decision. The Board may hold future hearings therein, may designate a committee to hold future hearings therein or to otherwise investigate the grievance, provided, however, that in no event, except with express written consent of the Association shall final determination of the grievance be made by the Board more than one month after the initial hearing.

Step D If the Association and grievant are not satisfied with the disposition of the grievance at Step C or the time limits expire without the issuance of the Board's written reply, the Association may submit the grievance to final and binding arbitration under the Voluntary Labor Arbitration Rules of the American Arbitration Association, which shall act as the administrator of the proceedings. If a demand for arbitration is not filed within thirty (30) days of the date for the Step C answer, then the grievance shall be deemed withdrawn.

1. The arbitrator, in his award, shall not amend, modify, nullify, ignore or add to the provisions of this Agreement. His authority shall be strictly limited to deciding only the issues presented to him in writing by the Board and the Association, and his decision must be based only upon his interpretation of the meaning or application of the express relevant language of this Agreement.
2. Neither the Board of Education nor the Association shall be permitted to assert any grounds or evidence before the arbitrator which has not been previously disclosed to the other party.
3. Each party shall bear the full costs for its representation in the grievance procedure.
4. If either party requests a transcript of the proceedings, that party shall bear full costs for that transcript. If both parties order a transcript the costs of the two transcripts shall be divided equally between the Board and the Association.
5. Each party shall share equally the cost of the arbitrator and the AAA.

- 3.3 A. Failure of an employee or the Association to act on any grievance within the prescribed time limits will bar any further appeal. If the administrator or Board fails to render a decision within the prescribed time limits, the grievant may proceed to the next step. Time limits may be extended by mutual consent.
- B. Any investigation, handling, or processing of any grievance by the grievant shall be conducted so that instructional programs and related work activities of the grievant and of the teaching staff are not interrupted.
- C. Step A of the grievance procedure may be bypassed and the grievance brought directly to Step B if mutually agreed upon by the employee and the Superintendent.
- D. If a grievance involves a class of employees, the Association may initially file the grievance at Step B.
- E. Employees shall have the right to be represented by an Association representative, if one is requested, at Steps A through D of Article 3.2.
- F. With the Superintendent's approval, the grievant may be released from his/her regular assignment without loss of pay or benefits to attend the meetings specified in Articles 3.2 A-C.
- G. All records related to a grievance shall be filed separately from the personnel files of the employees.
- H. A grievance may be withdrawn at any level without establishing precedent.
- I. If the Association, or any employee, files any claim or complaint in any other forum other than under the grievance procedure of this Agreement, then the Board shall not be required to process the same claim or set of facts through the grievance procedure.

ARTICLE IV

Rights of the Board

The Board, on its own behalf and on behalf of the electors of the District, hereby reserves and retains unto itself, without limitation, all powers, rights, authority, duties and responsibilities conferred upon and vested in it by the laws and Constitution of the State of Illinois and the United States.

ARTICLE V

Employee and Association Privileges

- 5.1 The local Association shall have the privilege, upon the approval of the Superintendent, to use the school building for meetings at times when school is not in session provided that such meetings do not interfere with any aspect of the instruction and/or extracurricular programs of the District. All meeting areas and times for such meetings are subject to advance approval of the Superintendent. Written notice shall be filed in the Unit Office at least two (2) days prior to the meeting date before consideration of the request.
- 5.2 The Association may post and maintain official notices or announcements on the existing bulletin boards in the teacher lounges.
- 5.3 An authorized local representative of the Association may have the privilege of placing a reasonable number of official Association announcements in the teacher mailboxes.
- 5.4 The Board shall provide notification to the Association President 7 days prior to a Waiver Hearing. This notice shall also provide the nature of the waiver.

5.5 Association Rights

The President of the Association or the President's designee will be notified of all regular and special meetings of the Board by receiving a copy of the agenda via school email in advance of such meeting. The President or designee shall also be given a copy of the official minutes of such meetings, once the minutes are approved by the Board. During summer months, the Board will email to the Association President notices of Board meetings and copies of the minutes.

- 5.6 Names, addresses and phone numbers of newly hired members of the bargaining unit shall be provided to the Association President or designee within ten (10) days of Board action following their employment recommendation. The board also agrees to notify the Association president or designee in writing with ten (10) days of Board action, of any resignation, retirement, or termination of any member of the bargaining unit.

5.7 Right of Representation

When a teacher is required to appear in an investigatory meeting before the Board or administration concerning any matter, which could lead to discipline, dismissal or loss of salary, the teacher shall be entitled to have an Association representative present. In a case of alleged gross misconduct or for any non-remedial offense when immediate disciplinary action is warranted against a teacher, his/her representative will be taken from a list of union representative designee provide

annually by the Association to the Administration. Further, when a teacher is required to appear before the Board or Administration, the teacher shall be advised in writing of the reason(s) for the meeting 24 hours prior to the meeting.

5.8 Teacher Right to Address the Board

An individual teacher or the Association may request time on the agenda or a regular or special Board meeting to express his/her concerns regarding a Board or administrative decision. This discussion will be held in accordance with the Open Meeting Act – 5 ILCS 120/2 of the Illinois School Code. An Association representative may accompany said teacher at the Board meeting.

ARTICLE VI

Employee Access to Personnel File

- 6.1 Each employee shall have the right to review the contents of his/her personnel file, subject to the following conditions:
- A. The Board shall provide the employee with the inspection opportunity within seven (7) working days after the employee makes the request. If the employer can demonstrate, through a reasonable showing, that such deadline cannot be met, the employer shall have an additional seven (7) working days to comply.
 - B. The employee shall not be entitled to inspect or view any materials exempted from such inspection or viewing under Section 10 of the Illinois Personnel Records Act.
 - C. The employee's review of his/her personnel file shall take place during the normal working hours of the central Unit Office Building. The Superintendent and/or his designee reserves the right to be present at such review.
 - D. The employee shall not be entitled to remove any part of his/her personnel records from the personnel file.
 - E. After the employee has reviewed the contents of his/her personnel file, the employee may request that copies be made of specified information contained in the file. The Board shall charge \$.05 per page as a fee for the cost of reproduction.
 - F. No disciplinary material shall be placed within an employee's personnel file without a copy being given to the employee prior to placement in the file.

ARTICLE VII

Leaves

7.1 Sick Leave

Teachers shall be entitled to fourteen (14) days sick leave per year. Unused sick leave shall accumulate to 360 days including the leave of the current year. Part-time teachers contracted to work less than the number of pupil attendance days shall earn pro-rated sick leave.

Sick leave shall be interpreted to mean personal illness, quarantine at home, or serious illness or death in the immediate family.

For the purpose of sick leave, "immediate family" shall include parents, step-parents, spouse, domestic partner, brothers, sisters, children, grandparents, grandchildren, parents-in-law, brothers-in-law, sisters-in-law and legal guardians.

The Board and/or its designee shall monitor the use of teacher's sick leave and may request a physician's certificate of treatment as the Board and/or its designee deems necessary.

Under extenuating circumstances, with superintendent approval, sick leave days may be used for bereavement other than for stated family members.

The Association and the District agree that in some individual cases, it may be to the Employee and District's benefit for the District to purchase for the Employee, outside service credit and/or provide additional sick days to an Employee who is near and considering retirement. In these cases, the Association shall be party to the discussions and signature to the agreement.

Attendance Bonus:

Full-teachers who miss one (1) day or less from sick leave and two (2) days or less of personal business leave shall receive a \$500 bonus at the end of the year.

7.2 Leaves of Absence

Leaves of absence without pay may be granted to tenured teachers upon making application and receiving the approval of the Board. Each approved leave of absence shall be of the shortest possible duration required for the leave and shall be consistent with a reasonable continuity of instruction for students.

Leaves of absence without pay may be granted to tenured teachers for up to a maximum of one full year, according to the following conditions:

- A. Written requests for a leave of absence without pay should be made at least ninety (90) days before the leave is desired, and all such leaves are subject to final approval of the Board.
- B. Dates of departure and return must be acceptable to the Board and the administration.
- C. Teachers granted a leave of absence must inform the Superintendent of his/her desire to return to work in a position for which he/she is qualified no later than February 1. If the teacher fails to inform the Superintendent on or before February 1, the teacher shall have waived the right to future employment in the District.
- D. For the duration of Board granted leave, employees may continue on their school insurance plan. However, the employee has sole responsibility to pay the cost of said insurance plan while on leave.

7.3 Jury Duty - Subpoenas

Teachers who lose work time in the District on day(s) they are scheduled to teach due to service on jury duty or service as a witness in a court of law in response to a subpoena shall lose no salary thereby provided that:

- A. They provide notice to the administration of the scheduled dates of their absences upon receipt of the jury duty notice or subpoena and
- B. They remit to the Board any money received for such service.

7.4 Professional Leave

The Superintendent may authorize professional leave without pay deduction for attendance at professional meetings and conferences dealing with the teacher's subject area. The decision to approve or deny requests for professional leave, and the length of absence for such a leave, is vested in the unilateral discretion of the Superintendent. Teachers on approved professional leave shall be reimbursed for the reasonable expenses of registration fees, meals, lodging and travel.

- A. The Association shall be limited to a maximum of two (2) days per school year without loss of pay. The teacher's salary and the expense of the substitute teacher will be paid by the Board.
- B. In the event that more than 2 days are required for Association business, the following conditions will apply:

- (1) Up to two additional days may be requested for Association leave. The teacher's salary for those days will be reimbursed by the Association. The substitute salary will be paid by the Board.
 - (2) Request for day(s) in excess of the four days for Association Leave stated above must have approval of the Board of Education. All expenses will be assumed by the Association or the individual teacher.
- C. Notification of such leave shall be submitted in writing to the Superintendent at least three (3) school days in advance of the days requested for Associational leave.
- D. The additional leave day(s) requested will be granted pending the availability of substitute teachers.

This agreement does not prohibit the individual from using business leave days to attend Association workshops, seminars, convention or similar events.

7.6 Business Leave

Upon application to the Superintendent, teachers will be allowed three (3) business days under the following conditions:

- A. All three days will be granted without submission or approval of the reason(s) for the leave.
- B. Either day's leave will require Superintendent approval for the following:
 1. Less than three (3) days notice.
 2. The day immediately proceeding or following a holiday or vacation.
 3. The first five days or the last five days of the school calendar year.
 4. More than two (2) teachers on the same day.
- C. Special consideration will be given by the Superintendent for special events (weddings, graduation, college registration, etc.) with supportive evidence.
- D. Days must be taken in increments of at least $\frac{1}{2}$ days.

- E. Unused leave days will be added to accumulated sick leave on or before June 30 of each year.

Attendance Bonus:

Full-teachers who miss one (1) day or less from sick leave and two (2) days or less of personal business leave shall receive a \$500 bonus at the end of the year.

7.7 Family Medical Leave

Up to twelve (12) workweeks of unpaid leave will be granted upon a request approved by the Board in accordance with the Family and Medical Leave Act for the following reasons:

Eligible employees may use unpaid family and medical leave, guaranteed by the federal Family and Medical Leave Act, for up to a combined total of 12 weeks based on a "rolling" 12-month period. (Each time an employee takes FMLA leave, the remaining leave entitlement would be any balance of the 12 weeks, which has not been used during the preceding 12 months).

1. Birth of a child.
2. The placement of a child with the employee for adoption or foster care.
3. The care of a spouse, child or parent with a serious health condition, or
4. A serious health condition of the employee which makes the employee unable to perform the functions of the position.
5. For any qualifying exigency arising out of the fact that a spouse, Son, daughter, or parent is a military member on covered active Duty or call to active duty status.
6. To care for a covered service member with a serious injury or Illness (Military Caregiver Leave)

7.8 Bereavement Leave

In the event of death or serious illness in the immediate family, employees shall be granted up to three days of bereavement leave. If more than one instance of death or serious illness in the immediate family occurs in any one fiscal year, the Superintendent shall judge whether or not an additional three days of leave may be granted. These days are not cumulative. The term "immediate family" shall be interpreted as 7.1 of the current agreement. If more than three days leave is needed, accumulated sick leave may be used. Under extenuating circumstances with Superintendent approval, sick leave days may be used for bereavement other than for stated family members.

1. For the purpose of Bereavement Leave only, aunts and uncles shall be considered immediate family.

ARTICLE VIII

Working Conditions

8.1 School Calendar

The Board shall establish a school calendar, which meets the requirements of the State of Illinois prior to each school year for the duration of this agreement. Prior to recommending the calendar to the Board, the Administration shall provide the Association with the calendar options being considered. The Association shall have the opportunity to express its recommendations to the Board.

8.2 Assignments

Teachers shall be notified of their tentative teaching assignments. This notification will be included in with the July salary statement mailing. Should the Board and/or administration change any such assignment, the teacher(s) involved shall be notified as soon as possible.

8.3 Sick Leave Credit

The administration shall furnish each teacher with a written statement of total sick leave credit within thirty (30) days after the start of each school year within the term of this agreement.

8.4 Policy Manual

The Board of Education shall make available one (1) copy of the Board Policy Manual of Brownstown Community Unit District No. 201 to the President of the Teachers Association. Whenever a new policy is adopted and/or a policy is revised, the president of the association shall receive a copy to be placed in the policy manual.

8.5 Paychecks

All teachers shall receive their paychecks on the 20th of each month. If the 20th falls on a Saturday, Sunday, or legal holiday, teachers shall receive their paychecks on the preceding work day. If the holiday begins more than three days prior to the twentieth, checks will be mailed to the employee no later than the 17th

of the month. Paycheck itemized salary statement will be emailed to the teachers during the summer months when school is not in session.

8.6 Duty-Free Lunch

All teachers shall receive a duty-free lunch period as required in Section 24-9 of the School Code.

8.7 Internal Substitution

Teachers may be assigned by the Administration to substitute in a classroom during their preparation period or during assigned time for other than classroom duties (Example - Athletic Director).

Teachers will be compensated at the following rates:

- | | | |
|----|--|---------|
| A. | Less than one-half period (23 minutes) | \$ 5.00 |
| B. | More than one-half period (24 minutes) | \$10.00 |

Teachers will be assigned on a rotating basis when more than one teacher is available at the specified time.

If the request to serve as an internal substitute will cause a serious impairment in preparing for class(es) or assigned responsibility later in the day, the teacher should make that fact known to the administrator. The right to assign such duty in an emergency situation if no other alternative exists rests with the administrator.

Payment is based on separate periods of internal substitution and shall not be accumulated.

Teachers shall receive payment for said services within two months.

8.8 Within thirty (30) days after this agreement is signed, the Board shall have one copy of the Agreement prepared and delivered to the Association. The approved Agreement will then be posted for public viewing on the district website.

8.9 The Board shall reimburse the cost of tuition up to \$100 per credit hour for any teacher contacted concerning shortage of hours in their assigned teaching area(s) as indicated in any Illinois State Board of Education Visitation Report. The teacher shall receive credit on the salary schedule for additional hours completed to meet the stated requirements.

8.10 Teacher Evaluation Plan

Development of revisions of the teacher evaluation plan for certified school district employees in contractual continued service shall be made in cooperation with the Association.

- a. Within thirty (30) days of the first day of school (i.e., the first day of student attendance) the school district shall provide a written notice to all teachers subject to evaluation that school year.
- b. Prior to the evaluation, the evaluator shall meet with the teacher, explain the evaluation procedure and instrument and set a date for the formal observation.
- c. Non-tenured teachers shall be evaluated at least once each year. Tenured teachers shall be evaluated at least every other year.
- d. Within ten (10) days of the observation, the evaluator shall meet with the teacher to discuss the formative evaluation. A copy of the formative evaluation shall be provided to the teacher.
- e. The observation for the formal evaluation shall be for a minimum of 45 minutes at a time; or an observation during a complete lesson; or an observation during an entire class period.
- f. The formative evaluations shall take place in each of the two semesters. No formative evaluation shall take place in the first full four (4) weeks of school or the last two (2) weeks of the school year.

G. Unsatisfactory Evaluation Rating Appeal Procedure

A teacher who receives a summative evaluation rating of unsatisfactory shall have the right, for 15 days following receipt of such rating, to appeal the rating. The request for the appeal shall be made in writing and delivered to the office of the Superintendent of Schools within 15 school days of the teacher's receipt of the summative evaluation, and requests made after that date shall not be timely and shall be waived. The teacher shall state the basis for the appeal and identify the evidence that supports the appeal.

Grounds for an appeal include procedural violations, inaccurate attribution of data, and/or inaccurate collection of evidence. The appeal committee shall be made up of four qualified employees appointed by the district evaluation joint committee, but no one involved in evaluating the appealing teacher shall be appointed to the committee. All members of the appeal committee shall be qualified evaluators as defined in 105 ILCS 5/24A and trained on the use of the Danielson Framework and the collection of evidence.

The appeal committee shall meet (by video conference, if necessary) to consider the appeal within ten (10) school days of receipt of the appeal request. In addition to the written appeal, the teacher may address and provide evidence to the review committee in person. The teacher may be accompanied by a union representative when addressing the committee.

When considering an appeal, the committee will:

1. Assess the original rating and review the documentation to ensure all of the state, joint committee, and contractual procedures were appropriately followed during the evaluation.
2. The employer shall provide the teacher and the union with all evidence used by the qualified evaluator to determine the summative rating. The teacher and the union shall provide to the employer any and all evidence the teacher or the union intends to present to defend the rating was inappropriate. The appeal committee shall review the evidence set forth in the summative evaluation, evaluate whether there was procedural compliance with the evaluation plan, rules, and collective bargaining agreement, shall review attribution of data, and/or collection of evidence, and shall assess whether there was sufficient evidence to find that the evaluation rating was inappropriate.
3. Compare the performance rating to the student growth rating. These should not be significantly different (e.g., if a teacher was rated as proficient under the performance component the teacher should not be needs improvement under the growth component). If a teacher is proficient when observed in the classroom then proficient teaching should logically result in student growth.
4. If procedures set forth by the district evaluation plan and/or collective bargaining agreement were not followed, if opinion, interpretation, or bias is found within the evidence, or there is a significant difference between the performance and growth ratings then the teacher will receive a rating of proficient.

The burden of proof to overturn the evaluator's rating shall be upon the teacher receiving such rating. If the appeal committee determines that there are significant procedural violations in the teacher's evaluation or there is insufficient evidence to support the "unsatisfactory" rating, the committee shall have the authority by a majority vote of the committee to overturn the teacher's unsatisfactory rating. If there is no majority vote to change the unsatisfactory summative evaluation rating, the rating shall stand. If the committee overturns the rating, the committee shall have the authority to revise the rating as the committee deems appropriate. The appeal process must conclude within 30 school days after the panel receives the teacher's written request for appeal.

An appeal shall not delay the development and implementation of a remediation plan. If the unsatisfactory evaluation rating is overturned by the appeal committee the teacher's remediation plan shall stop immediately and be null and void. The remediation plan and all related documents shall be removed from the teacher's evaluation and his/her personnel file.

8.11 Work Day

All teachers shall be required to work from 7:50 A.M. until 3:35 P.M. each school day and institute days.

8.12 Sharing Classes

The Board will inform the Association prior to a decision being made on sharing teachers, students or classes with other districts.

8.13 Vacancies

When a vacancy arises due to a resignation, death, voluntary or involuntary transfer, or the Board's decision to increase the number of teaching positions or extra duty assignments, the Superintendent will post a vacancy notice in each building administrative office seven (7) days prior to making the position known to the general public. After those seven (7) days, the Superintendent will make the position known to the public fourteen (14) days prior to filling the position. If the vacancy occurs during the months of July or August, the 14 day requirement will be waived to fill the vacancy. The 14 day requirement will also be waived during the school year for any extra duty assignment which becomes open. All vacancies will be posted and a copy sent to the BEA president or designated person.

Current employees, if qualified, to fill the position(s) will be granted an interview contingent on submitting a formal letter of interest, completing an official application and fulfilling the requirements as stated in the application or job posting.

If the vacancy occurs during the summer months when school is not in session, a copy of the vacancy notice shall be mailed to the address of the Association President.

The term "vacancy" shall not apply to any position from which an employee is absent due to leave.

8.14 Graduate Credit

The Board agrees to reimburse teachers \$100.00 per semester hour toward expenses incurred while completing additional coursework. Coursework part of an approved Master's degree program for the University will be reimbursed fully at the \$100.00 per semester hour. Coursework not part of an approved Master's degree program reimbursement shall not exceed 8 semester hours per employee per year. Coursework taken must be at the graduate level from a North Central accredited University.

The teacher must gain prior approval from the district superintendent for the course(s) taken and the course(s) must pertain to the teacher's area of certification. The stipend will be paid within 60 days of the Unit Office's receipt of an official transcript following course completion.

Coursework taken prior to completion of a Master's degree will not count as credit beyond the Master's level.

8.15 Board Requested Overtime

The hourly rate for the Board requested teaching related overtime shall be calculated according to the base pay (Step 1) / number of school days (180) / hourly per day (7.5). Examples include tutoring, homebound instruction, IEP alternative instruction, etc.

8.16 Class Size

Within the reality of physical, fiscal and staffing constraints, efforts will be made to establish class sizes which will provide quality educational opportunities for children. Association members concerned with excessive class sizes will be allowed, after reasonable notice, to meet with the Superintendent. If consensus cannot be reached, reasons for not reducing class sizes will be presented to the Association.

8.17 Working Conditions

Teachers shall not have the option to decline going on a class trip unless approval is made by the board for extenuating circumstances. If the board approves the teacher's request not to go on the class trip, said teacher is responsible for providing a suitable replacement who is currently employed by the District. The teacher is also responsible to continue any fundraising and scheduling that the class trip entails.

8.18 Teacher Expectations

Teachers are expected to follow the expectations as described in the Faculty Handbook of each building. Failure to do so will result in a written warning from the administrator of the building. If the teacher still does not follow the handbook, disciplinary action will be taken up by the board.

8.19 Dismissal list and Seniority list

The Board shall, in consultation with the Association, each year establish a sequence of honorable dismissal list, categorized by positions and groupings, and seniority list distribute the same to the Association at least seventy-five (75) days before the end of the school year or as may otherwise be required by the School Code.

8.20 Joint Committee

The parties shall form a Joint Committee for Honorable Dismissals as required by the School Code. The Joint Committee shall have equal representation selected by the Board and by the Association and shall meet in accordance with the School Code. The Joint Committee shall be responsible for determining the criteria for placement of employees into groupings for honorable dismissals as provided in Section 24-12 of the School Code.

8.21 Reduction in Force

Reduction in force and recall of teachers shall be as provided in the School Code.

8.22 Faculty Handbook

Each year within one week of the start of school, the Association president shall be provided with a copy of the Brownstown CUSD Faculty Handbook.

The parties acknowledge that any changes in the Faculty Handbook which effect employee wages, hours, or working conditions are subject to bargaining. Any proposed changes in employee wages, hours, or working conditions in the faculty handbook shall be provided to the Association president ten days prior to their consideration by the Board of Education.

8.23 Professional Development Hours (CPDU)

Professional Development Hours (CPDUs) will be presented to staff members within 3 workdays of the School Improvement Programs/Meetings that were held within the school day.

8.24 Teacher Prep Time

If feasible, elementary teachers will receive a minimum of 30 consecutive minutes of daily preparation time which may include Art, Music, and PE. If the building administration determines that it is not feasible to provide the 30 consecutive minutes, the building administration will present the master schedule to the Association President and the Superintendent. The Association President shall then have the opportunity to express its recommendations to the Superintendent, with the Superintendent having the final determination.

If feasible, JH & HS Prep time will consists of one (1) period per day not to include Academic Support. If the building administration determines that it is not feasible to provide the one (1) period per day not to include Academic Support, the building administration will present the master schedule to the Association President and the Superintendent. The Association President shall then have the

opportunity to express its recommendations to the Superintendent, with the Superintendent having the final determination.

8.25 Special Education

- A. Special Education teachers within the District will be given release time during the school day to complete IEP's in preparation for scheduled IEP meetings.
1. The Special Education teacher will be allowed a maximum of 1 days release time per year.
 2. The Special Education teacher is required to give Administration 14 days notice of requested release day.
- B. IEP Meetings – If possible, IEP meetings will not be scheduled during a block of time designated as Teacher Preparation (PE, Art, Music, Recess, Lunch), the Teacher attending the IEP will be reimbursed for an internal substitution as stated in 8.7 of the Collective Bargaining Agreement.

ARTICLE IX

Salary and Fringe Benefits

9.1 Insurance

The District will contribute the following, but no more than 100%, toward the insurance premium for twelve month coverage toward a Board approved insurance plan:

2021-2022: \$375 per month (Annual Contribution \$4,500)
2022-2023: \$400 per month (Annual Contribution \$4,800)
2023-2024: \$425 per month (Annual Contribution \$5,100)

The increase in the Board contribution will become effective with the September paycheck in each of the contract years.

The adjustment in the cost of the insurance will become effective at the beginning of the contract year with the insurance carrier. The change in the amount of the deduction to the employee will be made in August to be effective for the September coverage.

9.2 The Board agrees to pay, from the established Salary Schedule the 9% teacher contribution to the Teacher Retirement System as shown in the following example:

Base Salary (Amount teachers will pay taxes on)	\$21,561.65
Board paid contribution to TRS (.098901 which	\$ 2,132.47

includes a factor for the increased income.)

Gross Salary

\$23,694.12

The Board agrees to pay the .84 of 1% of the teacher's salary to the Teacher Health Insurance Security Fund.

9.3 2021-2022 through 2023-2024 Salary Schedule - Appendix A

9.4 2021-2022 through 2023-2024 Extra Curricular Duty Schedule - Appendix B

9.5 Extra-Duty Longevity Bonus

After three (3) consecutive years of service in a listed Extra Duty assignment, the stipend will be increased by 6% as a longevity bonus. This bonus will be only if the service is in the same activity (Ex. Boy's Basketball) but would permit movement from Assistant Coach to Head Coach or vice versa.

The individual will be eligible for the longevity bonus, after completion of every year of service in the same assignment, divisible by three,

For purposes of establishing this bonus, the 2004-2005 school year will be considered the base year for the 6% longevity bonus. Individuals in continuous service in the same activity beginning with that year will be eligible for the bonus effective with the 2009-2010 school year.

9.6 Extra-Curricular Duty

A. Any Extra Curricular Duty not included on the schedule may be added at the discretion of the Board of Education if it is determined there is a need for such a position.

The salary for this position will be established in consultation with the Association upon establishment of the position and will be negotiated between the Board and the Association upon renewal of this contract.

B. An employee may resign from an extra duty coaching assignment effective at the end of any school year. If a suitable replacement cannot be found the resigning person will be required to fulfill the same role for one (1) more year. After that year has elapsed, and a suitable replacement cannot be found, the resigning person will be asked, but not forced, to fulfill that role.

9.7 Individuals who take a leave of absence from position of regular teaching service and which necessitate a leave from extra duty assignments, shall continue eligibility for the longevity bonus when returning to the same activity. Years of

service for longevity shall be based on actual years served within the same activity.

9.8 Extended Contract

- A. The Jr-Sr High Guidance Counselor shall have an extended contract of no more than ten (10) days. The days scheduled shall be determined by the principal and superintendent in consultation with the counselor.

Pay for the Counselor's extended contract shall be hourly and based upon his/her current salary divided by 180 days divided by 7.25 hours to establish an hourly rate.

- B. When it is necessary to provide driving time beyond the regular school day, upon approval of the superintendent, the Driver Education teacher shall be paid for additional time based upon the current salary divided by 180 days divided by 7.25 hours to establish an hourly rate.

- C. The Jr-Sr High Agricultural Education Teacher shall have an extended contract of no more than fifty five (55) days. The days scheduled shall be determined by the principal and superintendent in consultation with the Agricultural Education.

- D. Pay for the Agricultural Education teacher's extended contract shall be hourly and based upon his/her current salary divided by 180 days divided by 7.25 hours to establish an hourly rate.

9.9 Retirement Bonus

A teacher in good standing, who has been employed by the Brownstown CUSD #201 for fifteen (15) or more years, who has given the District an irrevocable letter of retirement by September 1, 2009 or January 1st each year thereafter, the teacher will receive a 6% increase in TRS creditable earnings for their final two years prior to the retirement.

Teachers who provide the district with a letter of resignation or retirement effective in Two (2) years shall go off the salary schedule and shall receive a 6% salary increase over the previous year's credible earnings for each of the final Two years of employment.

Teachers who provide the district with a letter of resignation or retirement effective in one year shall go off the salary schedule and shall receive a 6% salary increase over the previous year's credible earnings.

If a teacher utilizes the Early Retirement Option, the Retirement Bonus will not be in effect.

A teacher who has given an intent to retire letter, is receiving 6% increase over the previous year's creditable earnings, is assigned additional extra curricular duty, the employee shall be paid the contractual agreed upon rate for the extra work and the employer will be responsible for any additional contribution required by the teacher Retirement system which are necessary.

It is understood that all extra curricular activities are to be continued during the final two years.

Hourly payment (internal substitute, morning school, detention, tutoring, etc.) will be paid each year. If the employee goes over the 6% cap with hourly payments, the penalty will be responsibility of the District.

9.10 Master Level Longevity Bonus

A teacher with twenty (24) or more years' experience and is at the Masters or Masters Plus level shall receive a 2% bonus above the salary schedule step 23. Example: A teacher with 25 years experience and a Masters Degree will receive -

Masters Degree Step 23	\$57,174
2% bonus	\$1,143
Salary	\$58,317

9.11 National Board Certification

Teachers who have completed the National Board Certification program successfully will receive a yearly stipend of \$1,500 while maintaining National Board Certification as represented by the Illinois Master Teacher Certificate.

9.12 Dual Credit Classes

Teachers who are certified and teaching dual credit classes will receive a \$1,500 yearly stipend for the school year that the dual credit class is being taught.

9.13 Detention Study Hall/Saturday School

Teachers who serve as monitors of Administration assigned detention (before or after) school hours, will receive \$10.00 per assignment.

The Teacher who agrees to monitor students assigned to Saturday School by Administration, will receive a stipend of \$50.00. If the student(s) do not report for Saturday School, the Teacher will receive a stipend of \$35.

ARTICLE X

Effect of Agreement

10.1 Complete Understanding

The terms and conditions set forth in this Agreement represent the full and complete understanding between the parties. The terms and conditions may be modified only through the written mutual consent of the parties.

10.2 Savings Clause

Should any article, section, or clause of this Agreement be declared illegal by a court of competent jurisdiction, then that article, section, or clause shall be deleted from this Agreement to the extent that it violates the law. The remaining articles, sections, and clauses shall remain in full force and effect.

10.3 No Strike

The Association and bargaining unit members agree not to engage in or assist in a strike, directly or indirectly, for the term of this Agreement.

10.4 This Agreement shall become effective August 15, 2021 and shall remain in effect until August 15, 2024.

This agreement is signed this 19th of April, 2021 by the Board and the Association.

In witness thereof:

For the Brownstown Education Association-IEA-NEA



President



Secretary

For the Board of Education School District #201, Brownstown, Illinois



President



Secretary

Step	Year	BA	BA + 8	BA + 16	BA + 24	MA	MA + 8	MA + 16
1	2021-2022	Salary	34842	35644	36447	37248	39196	40799
		TRS	3446	3525	3605	3684	3877	4035
		Total	38288	39169	40052	40932	43073	44834
	2022-2023	Salary	35887	36713	37540	38365	40372	42023
		TRS	3549	3631	3713	3794	3993	4156
		Total	39436	40344	41253	42159	44365	46179
2	2023-2024	Salary	36964	37814	38666	39516	41583	43284
		TRS	3656	3740	3824	3908	4113	4281
		Total	40620	41554	42490	43424	45696	47565
	2021-2022	Salary	35644	36447	37248	38050	39998	41602
		TRS	3525	3605	3684	3763	3956	4114
		Total	39169	40052	40932	41813	43954	45716
3	2022-2023	Salary	36713	37540	38365	39192	41198	42850
		TRS	3631	3713	3794	3876	4075	4238
		Total	40344	41253	42159	43068	45273	47088
	2023-2024	Salary	37814	38666	39516	40368	42434	44136
		TRS	3740	3824	3908	3992	4197	4365
		Total	41554	42490	43424	44360	46631	48501
4	2021-2022	Salary	36447	37248	38050	38853	40799	42404
		TRS	3605	3684	3763	3843	4035	4194
		Total	40052	40932	41813	42696	44834	46598
	2022-2023	Salary	37540	38365	39192	40019	42023	43676
		TRS	3713	3794	3876	3958	4156	4320
		Total	41253	42159	43068	43977	46179	47996
5	2023-2024	Salary	38666	39516	40368	41220	43284	44986
		TRS	3824	3908	3992	4077	4281	4449
		Total	42490	43424	44360	45297	47565	49435

4	2021-2022	Salary	37248	38050	38853	39655	41602	42404	43226
		TRS	3684	3763	3843	3922	4114	4194	4275
		Total	40932	41813	42696	43577	45716	46598	47501
	2022-2023	Salary	38365	39192	40019	40845	42850	43676	44523
		TRS	3794	3876	3958	4040	4238	4320	4403
		Total	42159	43068	43977	44885	47088	47996	48926
	2023-2024	Salary	39516	40368	41220	42070	44136	44986	45859
		TRS	3908	3992	4077	4161	4365	4449	4536
		Total	43424	44360	45297	46231	48501	49435	50395
5	2021-2022	Salary	38050	38853	39655	40455	42404	43205	44008
		TRS	3763	3843	3922	4001	4194	4273	4352
		Total	41813	42696	43577	44456	46598	47478	48360
	2022-2023	Salary	39192	40019	40845	41669	43676	44501	45328
		TRS	3876	3958	4040	4121	4320	4401	4483
		Total	43068	43977	44885	45790	47996	48902	49811
	2023-2024	Salary	40368	41220	42070	42919	44986	45836	46688
		TRS	3992	4077	4161	4245	4449	4533	4617
		Total	44360	45297	46231	47164	49435	50369	51305
6	2021-2022	Salary	38853	39655	40455	41258	43205	44008	44809
		TRS	3843	3922	4001	4080	4273	4352	4432
		Total	42696	43577	44456	45338	47478	48360	49241
	2022-2023	Salary	40019	40845	41669	42496	44501	45328	46153
		TRS	3958	4040	4121	4203	4401	4483	4565
		Total	43977	44885	45790	46699	48902	49811	50718
	2023-2024	Salary	41220	42070	42919	43771	45836	46688	47538
		TRS	4077	4161	4245	4329	4533	4617	4702
		Total	45297	46231	47164	48100	50369	51305	52240

7	2021-2022	Salary	39655	40455	40979	42060	44008	44809	45611
		TRS	3922	4001	4053	4160	4352	4432	4511
		Total	43577	44456	45032	46220	48360	49241	50122
	2022-2023	Salary	40845	41669	42208	43322	45328	46153	46979
		TRS	4040	4121	4174	4285	4483	4565	4646
		Total	44885	45790	46382	47607	49811	50718	51625
	2023-2024	Salary	42070	42919	43474	44622	46688	47538	48388
		TRS	4161	4245	4300	4413	4617	4702	4786
		Total	46231	47164	47774	49035	51305	52240	53174
8	2021-2022	Salary	40455	41258	42060	42861	44809	45611	46413
		TRS	4001	4080	4160	4239	4432	4511	4590
		Total	44456	45338	46220	47100	49241	50122	51003
	2022-2023	Salary	41669	42496	43322	44147	46153	46979	47805
		TRS	4121	4203	4285	4366	4565	4646	4728
		Total	45790	46699	47607	48513	50718	51625	52533
	2023-2024	Salary	42919	43771	44622	45471	47538	48388	49239
		TRS	4245	4329	4413	4497	4702	4786	4870
		Total	47164	48100	49035	49968	52240	53174	54109
9	2021-2022	Salary	41259	42060	42861	43665	45611	46413	47215
		TRS	4081	4160	4239	4319	4511	4590	4670
		Total	45340	46220	47100	47984	50122	51003	51885
	2022-2023	Salary	42497	43322	44147	44975	46979	47805	48631
		TRS	4203	4285	4366	4448	4646	4728	4810
		Total	46700	47607	48513	49423	51625	52533	53441
	2023-2024	Salary	43772	44622	45471	46324	48388	49239	50090
		TRS	4329	4413	4497	4581	4786	4870	4954
		Total	48101	49035	49968	50905	53174	54109	55044

10	2021-2022	Salary	42060	42861	43665	44465	46413	47215	48017
		TRS	4160	4239	4319	4398	4590	4670	4749
		Total	46220	47100	47984	48863	51003	51885	52766
	2022-2023	Salary	43322	44147	44975	45799	47805	48631	49458
		TRS	4285	4366	4448	4530	4728	4810	4891
		Total	47607	48513	49423	50329	52533	53441	54349
	2023-2024	Salary	44622	45471	46324	47173	49239	50090	50942
		TRS	4413	4497	4581	4665	4870	4954	5038
		Total	49035	49968	50905	51838	54109	55044	55980
11	2021-2022	Salary	42861	43665	44465	45267	47215	48017	48576
		TRS	4239	4319	4398	4477	4670	4749	4804
		Total	47100	47984	48863	49744	51885	52766	53380
	2022-2023	Salary	44147	44975	45799	46625	48631	49458	50033
		TRS	4366	4448	4530	4611	4810	4891	4948
		Total	48513	49423	50329	51236	53441	54349	54981
	2023-2024	Salary	45471	46324	47173	48024	50090	50942	51534
		TRS	4497	4581	4665	4750	4954	5038	5097
		Total	49968	50905	51838	52774	55044	55980	56631
12	2021-2022	Salary	43665	44506	45267	46071	48017	48819	49621
		TRS	4319	4402	4477	4556	4749	4828	4908
		Total	47984	48908	49744	50627	52766	53647	54529
	2022-2023	Salary	44975	45841	46625	47453	49458	50284	51110
		TRS	4448	4534	4611	4693	4891	4973	5055
		Total	49423	50375	51236	52146	54349	55257	56165
	2023-2024	Salary	46324	47216	48024	48877	50942	51793	52643
		TRS	4581	4670	4750	4834	5038	5122	5206
		Total	50905	51886	52774	53711	55980	56915	57849

13	2021-2022	Salary	44465	45267	46071	46870	48819	49621	50423	51224
		TRS	4398	4477	4556	4635	4828	4908	4987	5066
		Total	48863	49744	50627	51505	53647	54529	55410	56290
	2022-2023	Salary	45799	46625	47453	48276	50284	51110	51936	52761
		TRS	4530	4611	4693	4775	4973	5055	5137	5218
		Total	50329	51236	52146	53051	55257	56165	57073	57979
	2023-2024	Salary	47173	48024	48877	49724	51793	52643	53494	54344
		TRS	4665	4750	4834	4918	5122	5206	5291	5375
		Total	51838	52774	53711	54642	56915	57849	58785	59719
14	2021-2022	Salary	45267	46071	46870	47673	49621	50423	51224	52027
		TRS	4477	4556	4635	4715	4908	4987	5066	5146
		Total	49744	50627	51505	52388	54529	55410	56290	57173
	2022-2023	Salary	46625	47453	48276	49103	51110	51936	52761	53588
		TRS	4611	4693	4775	4856	5055	5137	5218	5300
		Total	51236	52146	53051	53959	56165	57073	57979	58888
	2023-2024	Salary	48024	48877	49724	50576	52643	53494	54344	55196
		TRS	4750	4834	4918	5002	5206	5291	5375	5459
		Total	52774	53711	54642	55578	57849	58785	59719	60655
15	2021-2022	Salary	46071	46874	47673	48476	50423	51224	52027	52829
		TRS	4556	4636	4715	4794	4987	5066	5146	5226
		Total	50627	51510	52388	53270	55410	56290	57173	58055
	2022-2023	Salary	47453	48280	49103	49930	51936	52761	53588	54415
		TRS	4693	4775	4856	4938	5137	5218	5300	5382
		Total	52146	53055	53959	54868	57073	57979	58888	59799
	2023-2024	Salary	48877	49728	50576	51428	53494	54344	55196	56048
		TRS	4834	4918	5002	5086	5291	5375	5459	5543
		Total	53711	54646	55578	56514	58785	59719	60655	61591

16	2021-2022	Salary	46874	47369	48476	49321	51196	52027	52828
		TRS	4636	4685	4794	4878	5063	5146	5225
		Total	51510	52054	53270	54199	56259	57173	58053
	2022-2023	Salary	48280	48790	49930	50801	52732	53588	54413
		TRS	4775	4825	4938	5024	5215	5300	5382
		Total	53055	53615	54868	55825	57947	58888	59795
	2023-2024	Salary	49728	50254	51428	52325	54314	55196	56045
		TRS	4918	4970	5086	5175	5372	5459	5543
		Total	54646	55224	56514	57500	59686	60655	61588
	17	2021-2022	Salary	47678	48172	49321	50083	52027	52828
		TRS	4715	4764	4878	4953	5146	5225	5304
		Total	52393	52936	54199	55036	57173	58053	58934
2022-2023		Salary	49108	49617	50801	51585	53588	54413	55239
		TRS	4857	4907	5024	5102	5300	5382	5463
		Total	53965	54524	55825	56687	58888	59795	60702
	2023-2024	Salary	50581	51106	52325	53133	55196	56045	56896
		TRS	5003	5054	5175	5255	5459	5543	5627
		Total	55584	56160	57500	58388	60655	61588	62523
	18	2021-2022	Salary			50083	50886	52828	53630
		TRS			4953	5033	5225	5304	5383
		Total			55036	55919	58053	58934	59816
2022-2023		Salary			51585	52413	54413	55239	56066
		TRS			5102	5184	5382	5463	5545
		Total			56687	57597	59795	60702	61611
	2023-2024	Salary			53133	53985	56045	56896	57748
		TRS			5255	5339	5543	5627	5711
		Total			58388	59324	61588	62523	63459

19	2021-2022	Salary	53630	54433	55234
		TRS	5304	5383	5463
		Total	58934	59816	60697
	2022-2023	Salary	55239	56066	56891
		TRS	5463	5545	5627
		Total	60702	61611	62518
	2023-2024	Salary	56896	57748	58598
		TRS	5627	5711	5795
		Total	62523	63459	64393
20	2021-2022	Salary	54702	55522	56339
		TRS	5410	5491	5572
		Total	60112	61013	61911
	2022-2023	Salary	56343	57188	58029
		TRS	5572	5656	5739
		Total	61915	62844	63768
	2023-2024	Salary	58033	58904	59770
		TRS	5740	5826	5911
		Total	63773	64730	65681
21	2021-2022	Salary	55526	56346	57163
		TRS	5492	5573	5653
		Total	61018	61919	62816
	2022-2023	Salary	57192	58036	58878
		TRS	5656	5740	5823
		Total	62848	63776	64701
	2023-2024	Salary	58908	59777	60644
		TRS	5826	5912	5998
		Total	64734	65689	66642

22	2021-2022	Salary	56350	57170	57987
		TRS	5573	5654	5735
		Total	61923	62824	63722
	2022-2023	Salary	58041	58885	59727
		TRS	5740	5824	5907
		Total	63781	64709	65634
	2023-2024	Salary	59782	60652	61519
		TRS	5912	5999	6084
		Total	65694	66651	67603
23	2021-2022	Salary	57174	57994	58811
		TRS	5655	5736	5816
		Total	62829	63730	64627
	2022-2023	Salary	58889	59734	60575
		TRS	5824	5908	5991
		Total	64713	65642	66566
	2023-2024	Salary	60656	61526	62392
		TRS	5999	6085	6171
		Total	66655	67611	68563

Extra-Curricular Schedule

		2021-2022	1	
		Head w/Ass't	Head w/o As	Assistant
Athletic Director		\$2,570		\$1,712
Coaching Duties				
High School				
Baseball		\$1,535	\$1,689	\$1,153
Volleyball		\$2,193	\$2,527	\$1,646
Boys Basketball		\$3,512	\$4,653	\$2,634
Girls Basketball		\$3,512	\$4,653	\$2,634
Girls Track		\$1,535	\$1,689	\$1,153
Boys Track		\$1,535	\$1,689	\$1,153
Scholar Bowl		\$1,116		
Cheerleading		\$893		
Boys/Girls Track		\$2,533		
Junior High School				
Baseball		\$1,317	\$1,448	\$988
Volleyball		\$1,756	\$2,021	\$1,321
Boys Basketball		\$2,634	\$3,161	\$1,976
5/6 Basketball		\$1,003	\$1,203	\$752
Girls Basketball		\$2,634	\$3,161	\$1,976
Girls Track		\$1,317	\$1,448	\$988
Boys Track		\$1,317	\$1,448	\$988
Scholar Bowl		\$659		
Cheerleading		\$599		
5/6 Cheerleading		\$296		
JH Extra Curr. Supervisor		\$1,783		
Extra Curricular Driving		Destination 0-49 Miles (1 wa		\$26
for coaches.		Destination 50+ miles (1 way		\$39

Extra-Curricular Schedule

	2021-2022		
Chaperone	\$30.00		
Teacher Driver- Field Trip	\$25.00		
Ticket Sellers	\$25.00		
Clock/Bookkeeper-Night	\$30.00		
Yearbook Advisor	\$950		
BES Yearbook Committee	\$150	Up to 4 members	
Dramatics	\$700		
Music			
Instrumental	\$1,317		
Marching Band	\$342		
Vocal	\$572		
Class/Club Sponsor			
Freshman Class X 2	\$250		
Sophomore Class X 2	\$250		
Junior Class X 2	\$320		
Senior Class X 2	\$320		
Student Council X 2	\$250		
BES Student Council X 1	\$250		
High Student Council X 1	\$250		
Varsity Club X 2	\$79		
Librarians Club X 1	\$79		
Spanish Club X 1	\$79		
National Honor Society X 1	\$350		
Art Club X 1	\$150		
Lego Robotics Club X 1	\$250		
Band Booster X 1	\$150		
FFA Advisor	\$3,500		
Ag Land Manager	\$6,500		